

Signing over copyright vs. licensing your journal articles

Cite as: Martin Paul Eve, "Signing over copyright vs. licensing your journal articles", *eve.gd: Martin Paul Eve*, July 05, 2012, <https://doi.org/10.59348/ntpff-9dw76>.



I've just had through the request to sign a copyright form for a forthcoming article in a Taylor and Francis journal and duly read through their [material on copyright](#). Taylor and Francis explicitly state that:

We prefer authors to assign copyright to Taylor & Francis or the journal proprietor (such as a learned society on whose behalf we publish), but accept that authors may prefer to give Taylor & Francis an exclusive licence to publish.

Copyright

All fair and good. However, I wondered, given the extensive schedule of rights that they provide back to an author, what the benefit would be of holding on to the copyright of the piece. If I have signed away all rights as a condition of publication, the copyright becomes meaningless.

Searching about, I found [an excellent piece](#) by a librarian who was publishing in a T&F journal. Here is their conclusion that backed this up:

The License form looked ok to me... the author retains copyright, and there's no mention of an embargo period. But we ran it by Kevin Smith anyway, to get his reaction. And, of course, he demonstrated why I am not a lawyer. His reaction was that there is not much difference in the author's position under the License agreement or the original Copyright Assignment agreement. The author retains copyright, but grants T&F an exclusive license to publish. By doing so, the author would need T&F's permission to put the article in a repository. That permission is contained, you guessed it, in the Schedule of Author's Rights, which is referred to in the License form. So there would still be an 18 month embargo for posting a post-print.

Just when I was on the point of giving up, I noticed a comment by [Deborah Kaplan](#) that read as follows:

The nastiest part is the trickery, where they hide that they actually have better licensing agreements. When I went through my copyfight with Taylor and Francis, after they rejected the SPARC addendum, they finally got around offering me the ["http://web.uta.edu/faculty/schoech/cussn/jths/Author%20or%20Company-owned%20copyright%20\(2\).pdf"](http://web.uta.edu/faculty/schoech/cussn/jths/Author%20or%20Company-owned%20copyright%20(2).pdf) Author or Company-Owned Copyright Agreement (PDF), which I also think they've had for a while and which is much better than the licensing agreement they offered to you. (It's basically "author retains rights, grant Taylor and Francis the non-exclusive rights to publish, use your name, and sell to aggregators.") Why they didn't offer that on to you is beyond me.

This is the agreement you want. Here's the text of it:

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I have duly written to the editor of the journal to request this agreement. If others are allowed to, why should I not be?

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